

Allahabad High Court in Kundan Lal v. Jagannath shargza. A similar view was again taken in Dhoom Chand chain V. Chaman lal gupta, in which the learned Chief Justice Mr. Desai and Mr. Justice Dwivedi gave the same meaning to the expression "Entertain" .

110. Burden of proof : In an application before the Claims Tribunal for compensation for loss, destruction, damage, deterioration or non – delivery of any goods, the burden of proving –

- (a) the monetary loss actually sustained; or
- (b) Where the value has been declared under sub-section (2) of Sec. 103

In respect of any consignment that the value so declared is its true value, shall lie on the person claiming compensation, but subject to the other provisions contained in this act, it shall not be necessary for him to prove how the loss, destruction , damage, deterioration or non-delivery was caused.

Comment

Section 110 provides that burden of proof regarding monetary loss in suits for compensation for any loss, destruction. Etc., lies on the person claiming compensation.

111. Extent of liability of railway administration in respect of accidents at sea.

(1) When a railway administration contracts to carry passengers or goods partly by railway and partly by sea, a condition exempting the railway administration from responsibility for any loss of life, personal injury or loss of or damage to goods which may happen during the carriage by sea from act of god, public enemies, fire, accidents from machinery, boilers and steam and all and every other dangers and accidents of the seas, rivers and navigation of whatever nature and kind shall, without being expressed , be deemed to be part of the contract, and subject to that condition the railway administration shall, irrespective of the nationality or ownerships of the ship used for the carriage to goods which may happen during the carriage by sea, to the extent to which it would be responsible under the Merchant Shipping ACT, 1958 (44 of 1958), if the ships were registered under that Act and the railway administration were owner of the ship and not to any greater extent.

(2) The burden of Proving that any such loss, injury or damage as is mentioned in sub-section (1) happened during the carriage by seal shall lie on the railway administration.

Comment

Section 111 deals with the liability of Railway Administration in respect of accidents at sea.

112. Power to make rules in respect of matters in this chapter :

(1) The Central Government may, by notification . make rules to carry out the purposes of this chapter.

(2) In particular, and without prejudice to the generality of the foregoing power. Such rules may provide for all or any of the following matters, namely:

(a) the manner of packing of goods entrusted to a railway administration under Cl. (b) To sub-section (1) of Sec.98 ;

(b)The goods for the purposes of sub-section (3) of sec. 99; and

(c) the maximum amount payable by the railway administration for the loss, destruction, damage, deterioration or non-delivery of any consignment under sub-section (1) of Sec. 103.

COMMENT

Section 112 empowers the Central Government to make rules to carry out the purposes of Chapter XI. The matters in respect of which the rules shall be made by the Central Government are enumerated in sub-section (2)

CHAPTER XII

Accidents

113. Notice of railway accident :

(a) any accident attended with loss of any human life, or with grievous hurt, as defined in the Indian Penal Code (45 of 1860) , or with such serious injury to property as may be prescribed ; or

(b) any collision between trains of which one is a train carrying passengers ; or

(c) the derailment of any train carrying passengers, or of any part of such train; or

(d) any accident of a description usually attended with loss of human life or with such grievous hurt as aforesaid or with serious injury to property; or